

Deposits and Other Charges

When you rent a house or apartment, you're usually required to pay a security deposit equal to one month's rent, which the landlord will hold until you move out. At that time, any expenses for cleaning or repairs beyond normal wear and tear and any unpaid rent will be deducted from your deposit and the balance will be returned to you. Most states have laws about how landlords have to treat security deposits. Usually they have to place them in an escrow account or an account separate from their normal operating account. The landlord may be required to pay you interest on the deposit, and is required to return it to you within a specified time after you vacate the apartment.

Getting Your Security Deposit Back

Get a detailed receipt for any security or other deposits you pay. The receipt should show the date and amount paid, the name of the person you paid it to, the name of the landlord (if different), the address and apartment number the deposit is for, and a statement that it's a security deposit. Save the canceled check for the security deposit when your bank returns it in your monthly statement. This and your receipt are the best proof that you actually paid the deposit.

During the first week or so that you live in rented housing, go through every room and make a detailed list of everything that's broken, dirty, or damaged in any way, including chips in cabinets or tubs, holes in walls, broken windows, missing or broken knobs, tears in or stains on carpets, chips or rips in linoleum, burns, and so on. If possible, take pictures of the damage. Send a copy of the list to your landlord and keep a copy with your pictures to use, if needed, when you leave.
